

TENTATIVE RULING

Case: Vorhees v. Elfen
Case No. CV2024-2427

Hearing Date: March 19, 2026 **Department Eleven** **9:00 a.m.**

Plaintiff James Vorhees unopposed motion to set aside void default and default judgment for defendant is **DENIED**. (Code Civ. Proc., § 473, subd. (d).)

Plaintiff failed to file with the Court a proof of service of this motion on defendant Kristie Lynn Elfen. (Cal. Rules of Court, rule 3.1300(c) [“Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.”].) Furthermore, there is no default or default judgment entered against plaintiff in this action; thus, plaintiff fails to provide any legal authority upon which the Court may grant the relief requested. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.